

24SMCP00357 24SMCP00357

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-25

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Case Number: 24SMCP00357 Hearing Date: August 25, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

January

30, 2026, continued to April 2, 2026, continued to August 25, 2026

CASE NUMBER

24SMCP00357

MATTER

OSC

re: Entry of Judgment

MOVING PARTY

Plaintiff

Creditors Adjustment Bureau, Inc.

OPPOSING PARTY

none

BACKGROUND

On July 1, 2024, Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") brought suit against Defendants Knock Out Creative, Inc. ("Knock Out") and Kristi Kilday ("Kilday") (together, "Defendants") for Action on Judgment.

Kilday answered the Complaint on October 3, 2024 and default was entered against Knock Out on October 25, 2024.

On August 5, 2025, the Court granted Plaintiff's motion for summary judgment against Kilday.

Plaintiff now requests the Court to enter judgment against Kilday in the amount of \$1,206,829.35, comprised of damages in the amount of \$1,082,026.84; prejudgment interest in the amount of \$123,615.48, plus costs in the amount of \$1,187.03. No objections were filed.

Subsequent to the first hearing, Plaintiff revised the request for judgment in the amount of \$1,183,493.78, comprised of the original judgment of \$557,109.38; \$670,656.22 in post-judgment and pre-judgment interest accrued on the original judgment amount; \$1,068.27 in "post judgment costs"; \$1,187.03 in costs incurred in connection with this matter, less \$46,539.22 in payments received.

Plaintiff now seeks the revised amount of \$1,205,987.62, representing the original judgment of \$557,109.38 and postjudgment interest on the original judgment balance less payments made thereon in the total amount of \$648,878.24.

ANALYSIS

1. Service on Kilday

At

the prior hearing, the Court noted there was no proof of service demonstrating that the proposed judgment had been served on Defendant Kilday. Subsequent to that hearing, Plaintiff has filed a proof of service demonstrating that Kilday was served electronically

and by mail with the Court's April 2, 2026 Minute Order on the OSC re: Entry of Judgment on April 6, 2026 and with the proposed judgment on August 13, 2026.

2. Damages & Prejudgment Interest

The original judgment entered on March 21, 2014 was for \$557,109.38, yet Plaintiff seeks damages in the amount of \$1,082,026.84.

In support of the increased judgment amount, Plaintiff originally advanced the supplemental attorney Declaration of Anna Landa, which provides:

1.

On March 21, 2014, a judgment was entered in favor of Plaintiff's assignor, Hudson9300 Wilshire, LLC ("Plaintiff's Assignor") and against Knock Out Creative, Inc., Anne Kilday and Kristi Kilday in the amount of \$557,109.38 (the "Original Judgment") in the County of Los Angeles, State of California, Case Number SC117858.

2.

On July 1, 2024, Plaintiff timely brought suit against Defendants Knock Out Creative, Inc. ("Knock Out") and Kristi Kilday ("Kilday") (together, "Defendants") for Action on Judgment (the "Complaint").

3.

The Complaint listed the demand owed as \$1,082,026.84.

4.

The Complaint states that, "subsequent to the entry of said judgment, interest has accrued to date in the sum of \$523,849.19 (after applying payments totaling \$46,539.22 towards accrued interest), and costs incurred total \$1,187.03. That there is now due and owing on said judgment the sum of \$1,082,026.84." See Complaint, ¶¶ 8-9.

5.

The Complaint's prayer for relief asks "for judgment against Defendant for the sum of \$1,082,026.84 together with interest thereon at the rate of ten percent (10%) per annum from June 14, 2024; for all costs of suit incurred herein..." See

Complaint, ¶9.

6.

On May 5, 2025, Plaintiff filed its Motion for Summary Judgment (the “MSJ”).

The MSJ specifically states that, “[a]t the time of filing the Action on Judgment, there was due and owing the sum of \$1,082,026.84.” See MSJ, p. 3.

7.

The MSJ was unopposed.

8.

On August 5, 2025, the MSJ was granted.

9.

As such, judgment should be entered in this action in the amount of \$1,206,829.35. This amount is comprised of \$1,082,026.84, which includes 10 years of previous interest from the Original Judgment, current interest of \$123,615.48 (10% per annum from the default date of June 14, 2024), and costs in the amount of \$1,187.03.

(Landa Decl. ¶¶
2-9.)

In

1982, the Legislature enacted the Enforcement of Judgments Law (EJL). (§ 680.010 et seq.) Prior to enactment of the EJL, the means for renewal of a judgment in California was by filing an independent action on the judgment within the 10–year statute of limitations.

In

the [EJL], the Legislature adopted an alternative summary procedure for renewal [of judgments]. Under this procedure, a money judgment is enforceable for 10 years from the date it is entered. (§ 683.020.) To obtain a renewal of the judgment, the judgment creditor must file an application for renewal with the clerk of the court that entered the judgment before the expiration of the 10–year period of enforceability. Upon the filing of the application, the court clerk shall enter the renewal of the judgment in the court records.

But

nothing in the EJL limits a judgment creditor's right to pursue an independent

action on the judgment. (\$ 683.050.)

An

independent action based on a judgment is an action based on contract. The original judgment becomes a debt which the judgment debtor is obligated to pay and the law implies a contract on his part to pay it. Thus, when successful, an action on a judgment results in the entry of a new judgment.

(Cadle Co. II,
Inc. v. Fiscus (2008) 163 Cal.App.4th 1232, 1237-1238 [cleaned up].)

Here,

the purported additional interest was neither part of Plaintiff's request on summary judgment, nor part of the Court's order granting summary judgment. Rather, the arguments Plaintiff submitted to the Court, and as the Court indicated in its ruling on the motion for summary judgment, judgment was originally entered in the amount of \$557,109.38 on March 21, 2014, the judgment became final on September 21, 2014, and this action was filed within the 10-year statute of limitations. Thus, Plaintiff has demonstrated that summary judgment is appropriate as to the original \$557,109.38 judgment.

There

was no argument, explanation, request, or calculation made in connection with the motion for summary judgment concerning the interest that has accrued on the judgment in the interim. Instead,

Plaintiff has submitted the conclusory and unsupported statement in the January 22, 2025 Declaration of Brian Mitteldorf that "At the time of filing the instant action, there was due and owing the sum of \$1,082,026.84." As this statement was unsupported and irrelevant to the relief requested, the Court did not consider it or incorporate it into the ruling on the motion for summary judgment.

At

the first hearing, the Court found the Supplemental Landa Declaration insufficient to substantiate the \$1,082,026.84 now requested and expressed concerns about awarding interest on interest, and continued the hearing for further briefing.

Subsequently,

Plaintiff advanced the Declaration of Rafael Munoz Hernandez, which provides:

2.

On March 21, 2014, judgment was entered in favor of Plaintiffs assignor, Hudson

9300 Wilshire, LLC ("Plaintiffs Assignor") and against Knock Out Creative, Inc., Anne Kilday and Kristi Kilday in the amount of \$557,109.38 in the County of Los Angeles, State of California, Case Number SCI 17858.

3.

On December 1, 2020, the Judgment was assigned to Plaintiff for collection purposes.

4.

On July 1, 2024, Plaintiff timely filed suit against defendants Knock Out Creative, Inc. and Kristi Kilday for Action on Judgment. Plaintiffs Complaint listed a demand amount of \$1,082,026.84 which included the judgment balance of \$557,109.38, plus accrued post-judgment interest at the legal rate of ten percent per annum, plus \$1,068.27 in post judgment costs, minus a credit of \$46,539.22 for payments made. A true and correct copy of the Complaint is attached hereto as Exhibit "I". The accrued post-judgment interest was calculated as follows:

$(\$557,109.38 \times 10\% \text{ per annum}) / 365 = \152.63 per diem

3737 days from 3/21/2014 (judgment entered date) to 6/13/2024 (date when Complaint was drafted);

$\$152.63 \times 3737 \text{ days} = \$570,388.43 \text{ in interest.}$

\$557,109.38

+ 570,388.43 + \$1,068.27 - \$46,539.22 = 1,082,026.86

5.

C.C.P. §685.010 allows a judgment debtor to collect post-judgment interest at the rate often (10) percent per annum on an unsatisfied judgment. Plaintiff, as judgment debtor's assignee, is legally entitled to recover post-judgment interest.

[...]

9.

Plaintiff is also entitled to interest accrued after filing its Complaint. California Civil Code Section §3287(a) allows parties to recover prejudgment interest. "A person who is entitled to recover damages certain, or capable

of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day." The right to recover pre-judgment interest can arise in breach of contract claims. See *Frink v Prod* (1982) 31 Cal.3d 166; *Tripp v. Swoap* (1976) 17 Cal.3d 671; In order to automatically qualify for pre-judgment interest, a party must have ascertainable damages occurring on a specific day. *Wisper Corp. v. Cal. Commerce Bank* (1996) 49 Cal.App.4th 948,958. The certainty requirement is satisfied when the defendant knows or can calculate the amount owed based on reasonably available information, even if liability is disputed. *Watson Bowman Acme Corp. v. ROW Construction, Inc.* (2016), 2 Cal. App. 5th 279,294.

10.

Plaintiff now seeks judgment in the amount of \$1,082,026.84 (amount on Complaint), plus interest from June 13, 2024, (date Complaint was drafted), to April 1, 2026 (date of hearing) in the amount of \$100,279.91, plus costs in the amount of \$1,187.03. For a total of \$1,183,493.78. On August 29, 2025, the court granted Plaintiffs request for costs in the amount of \$1,187.03, making this amount undisputed. A true and correct copy of the court's August 29, 2025, minute order is attached hereto as Exhibit "2".

11.

The \$100,279.91 in interest was calculated as follows:

(\$557,109.38

x 10% per annum)/ 365 = \$152.63 per diem

657

days from 6/13/2024 (date Complaint was drafted) to 4/1/2026 (date of hearing)

\$152.63

x 657 days= \$100,279.91 in interest

12.

Plaintiffs request for judgment in the amount of \$1,183,493.78 is consistent with the calculation as if the original judgment would have continued to accrued interest at the legal rate of ten percent per annum from the date the judgment was entered (3/21/14) to the date of the hearing (4/1/26).

(\$557,109.38

$\times 10\% \text{ per annum} / 365 = \152.63 per diem

4394

days from 3/21/2014 Judgment entered date) to 4/1/2026 (hearing date)

\$

$152.63 \times 4394 \text{ days} = \$670,656.22 \text{ in interest}$

\$557,109.38

(original judgment)+ 670,656.22 (interest accrued)+ \$1,068.27 (post judgment costs) + \$1,187.03 (litigation costs) - \$46,539.22 (payments) = 1,183,481.68.

13.

Plaintiff therefore requests that the court enter judgment against defendant, Kristi Kilday, in the amount of \$1,183,493.78.

(Hernandez Decl.

¶¶ 2-5, 9-13.) Thus, Plaintiff seeks the following:

· \$557,109.39 prior judgment balance

· Post-judgment interest from 3/21/14 through 6/13/24 in the amount of \$570,388.43

· \$1,068.27 in post-judgment costs

· Less a \$46,539.22 credit for payments made

· Prejudgment interest from 6/13/24 through 4/1/25 on the original judgment of \$557,109.38 in the amount of \$100,279.91

· Costs incurred in connection with this action in the amount of \$1,187.03 (discussed below)

At

the second hearing, the Court found three problems remained: (1) Plaintiff had not accounted for when the \$46,539.22 in payments were made or how those payments factored into the interest calculations; (2) Plaintiff failed to submit authority that prejudgment interest is available in an action on judgment, where post-judgment interest is already accruing; and (3) Plaintiff failed to substantiate the requested \$1,068.27 in post-judgment costs.

Subsequent

to the second hearing Plaintiff advanced the Supplemental Declaration of Rafael Munoz Hernandez, dated August 13, 2026, which provides:

2.

On March 21, 2014, judgment was entered in favor of Plaintiffs assignor, Hudson 9300 Wilshire, LLC ("Plaintiffs Assignor") and against Knock Out Creative, Inc., Anne Kilday and Kristi Kilday in the amount of \$557,109.38 in the County of Los Angeles, State of California, Case Number SCI 17858.

3.

On December 1, 2020, the Judgment was assigned to Plaintiff for collection purposes.

4.

On July 1, 2024, Plaintiff timely filed suit against defendants Knock Out Creative, Inc. and Kristi Kilday for Action on Judgment. Plaintiffs Complaint listed a demand amount of \$1,082,026.84. On August 5, 2025, the court granted Plaintiffs Motion for Summary Judgment against defendant Kristi Kilday. Granting Plaintiffs Motion meant that the court found no triable issue of fact as to defendant's liability as outlined in Plaintiffs Complaint and the Court should enter judgment as requested by Plaintiff.

5.

Plaintiff is now seeking judgment in the amount \$1,205,987.62. This amount includes principal balance and interest only. This number was calculated as follows:

6.

Plaintiff received the following 4 payments for this account:

\$23,992.45

on August 6, 2021

\$774.20

on September 15, 2021

\$750.91

on November 10, 2021

\$18,544.40

on December 6, 2022

7.

The accrued interest From March 21, 2014 (judgment entered date) to August 6, 2021 (first payment date) is \$411,337.85 in interest

(\$557,109.38

x 10% per annum)/ 365 = \$152.63 per diem

2695

days from 3/21/2014 (judgment entered date) to 8/6/2021 (first payment)

2695

x \$152.63 = \$411,337.85 in interest.

8.

The balance after receiving the 8-6-21 payment of \$23,992.45 was \$944,454.78

\$557,109.38

(judgment amount) + \$411,337.85 (interest to date of payment) - \$23,992.45

(payment) = \$944,454.78

9.

The accrued interest from 8-6-21 to 9-15-21 is \$6,105.20

(\$557,109.38

x 10% per annum)/ 365 = \$152.63 per diem

40

days from 8/6/2021 (first payment) to 9/15/2021 (second payment)

40

x \$152.63 = \$6,105.20 in interest.

10.

The balance after receiving the 9-15-21 payment of \$774.20 was \$949,785.78

\$944,454.78

(updated balance) + \$6,105.20 (interest to date of payment) - \$774.20

(payment)= \$949,785.78

11.

The accrued interest from 9-15-21 to 11-10-21 is \$8,547.28

(\$557,109.38

x 10% per annum)/ 365 = \$152.63 per diem

56

days from 9/15/2021 (second payment) to 11/10/2021 (third payment)

40

x \$152.63 = \$8,547.28 in interest.

12.

The balance after receiving the 11-10-21 payment of 750.91 was \$957,582.15

\$949,785.78

(updated balance) + \$8,547.28 (interest to date of payment) - \$750.91 (payment)

= \$957,582.15

13.

The accrued interest from 11-10-21 to 12-6-22 is \$59,678.33

(\$557,109.38

x 10% per annum) / 365 = \$152.63 per diem

391

days from 11-10-21 (third payment) to 12-6-22 (fourth payment)

391

x \$152.63 = \$59,678.33 in interest.

14.

The balance after receiving the 12-6-22 payment of \$18,544.40 was \$943,158.75

\$957,582.15

(updated balance) + \$59,678.33 (interest to date of payment) - \$18,544.40
(payment) = \$998,716.08

15.

The accrued interest from 12-6-22 to August 25, 2026 is \$207,271.54

(\$557,109.38

x 10% per annum) / 365 = \$152.63 per diem

1358

days from 12-6-22 (fourth payment) to 8-25-26 (hearing date)

1358

x \$152.63 = \$207,271.54 in interest.

16.

The balance to date of hearing is \$1,205,987.62

\$998,716.08

(updated balance) + \$207,271.54 (interest to date of hearing) = \$1,205,987.62

(Aug. 13 Hernandez

Decl. at ¶¶ 2-16.)

Thus,

the original March 21, 2014 judgment was entered in the amount of

\$557,103.39. (Aug. 13 Hernandez Decl. at

¶ 2.) Subsequently, Defendant made

payments as follows:

\$23,992.45

on August 6, 2021

\$774.20

on September 15, 2021

\$750.91

on November 10, 2021

\$18,544.40

on December 6, 2022

(Aug. 13 Hernandez

Decl. at ¶ 6.)

However,

from March 21, 2014 through August 6, 2021, when the first payment was made,

postjudgment interest accrued on the judgment in the amount of

\$411,337.85. (Aug. 13 Hernandez Decl. at

¶ 17.) Thus, Defendant's \$23,992.45

August 6, 2021 payment did not reduce the principal judgment balance, upon

which postjudgment interest continued to accrue.

Similarly,

from the first payment on August 6, 2021 to the second payment on September 14,

2021, an additional \$6,105.20 in interest accrued. (Aug. 13 Hernandez Decl. at ¶ 9.) As such, Defendant's September 15, 2021

payment of \$774.20 similarly did not reduce the principal judgment balance,

upon which postjudgment interest continued to accrue.

Likewise,

from the second payment on September 15, 2021 to the third payment on November

10, 2021, an additional \$8,547.28 postjudgment interest accrued. (Aug. 13 Hernandez Decl. at ¶ 11.) Thus, Defendant's November 10, 2021 payment

of \$750.91 did not reduce the principal judgment balance, upon which postjudgment

interest continued to accrue.

Similarly,

from the third payment on November 10, 2021 until the fourth payment on

December 6, 2022, an additional \$59,678.33 in postjudgment interest

accrued. (Aug. 13 Hernandez Decl. at ¶

13.) Thus, Defendant's December 6, 2022

payment of \$18,544.40 also did not reduce the principal judgment balance, upon

which postjudgment interest continued to accrue.

From

the fourth and final December 6, 2022 payment through the August 25, 2026 hearing date on this motion, postjudgment interest continued to accrue in the amount of \$207,271.54. (Hernandez Decl. at ¶ 15.)

Therefore,
Plaintiff has adequately substantiated the requested postjudgment interest in the amount of \$648,878.24, representing \$411,337.85 + \$6,105.20 + \$8,547.28 + \$59,678.33 + \$207,271.54 in interest - \$23,992.45 - \$774.20 - \$750.91 - \$18,544.40 in payments.

When added to the principal balance,
the total amount equals \$1,205,987.62, as requested.

3. Costs

Although
Plaintiff initially sought costs incurred in connection with this action in the amount of \$1,187.03, representing \$935 in filing and motion fees, \$158 for service of process, and \$94.03 in fees for electronic filing/service, Plaintiff has since withdrawn the request for costs and seeks judgment only in the amount of \$1,205,987.62, as outlined above.

CONCLUSION AND ORDER

Therefore, Plaintiff's request
for judgment in the amount of \$1,205,987.62 is granted.

Notwithstanding, the Court
finds that upon entry of the Judgment against Defendant Kilday the action will remain active because Defendant Knock Out and Doe Defendants 1-10 have not been dismissed. As such, the Court
will call the case to address the status of the action with counsel for Plaintiff.

DATED: August 25, 2026 _____/s/_____

Michael
E. Whitaker

Judge

of the Superior Court